

CHAPTER - 8

OTHER OFFENCES

ABETMENT – Section 107 to 120

In common parlance, the word 'abet' signifies help, co-activity and support and incorporates within its ambit, illegitimate reason to commit the crime.

Abetment under the Penal Code involves active complicity on the part of the abettor at a point of time prior to the actual commission of that offence, and it is of the essence of the crime of abetment that the abettor should substantially assist the principal culprit towards the commission of the offence.

Section 107 of the Indian Penal Code, 1860, states that a person abets the doing of a thing, who-

First- Instigates any person to do that thing; or

Secondly- Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or

Thirdly- Intentionally aids, by any act or illegal omission, the doing of that thing.

Explanation 1- A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

Explanation 2- Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitates the commission thereof, is said to aid the doing of that act.

ILLUSTRATION: A, a public officer, is authorised by a warrant from a Court of Justice to apprehend Z, B, knowing that fact and also that C is not Z, wilfully represents to A that C is Z, and thereby intentionally causes A to apprehend C. Here B abets by instigation the apprehension of C.

Who is an Abettor?

A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

Explanation 1- The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

Explanation 2- To constitute the offence of abetment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.

ILLUSTRATION: A instigates B to murder C. B refuses to do so. A is guilty of abetting B to commit murder.

ILLUSTRATION: A instigates B to murder D. B in pursuance of the instigation stabs D. D recovers from the wound. A is guilty of instigating B to commit murder.

Explanation 3- It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that of the abettor, or any guilty intention or knowledge.

ILLUSTRATION: A, with a guilty intention, abets a child or a lunatic to commit an act which would be an offence, if committed by a person capable by law of committing an offence, and having the same intention as A. Here A, whether the act be committed or not, is guilty of abetting an offence.

Explanation 4- The abetment of an offence being an offence, the abetment of such an abetment is also an offence.

ILLUSTRATION: A instigates B to instigate C to murder Z. B accordingly instigates C to murder Z, and C

commits that offence in consequence of B's instigation. B is liable to be punished for his offence with the punishment for murder; and, as A instigated B to commit the offence, A is also liable to the same punishment.

Explanation 5: It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should concert the offence with the person who commits it. It is sufficient if he engages in the conspiracy in pursuance of which the offence is committed.

ILLUSTRATION: A conspires with B a plan for poisoning Z. It is agreed that A shall administer the poison. B then explains the plan to C mentioning that a third person is to administer the poison, but without mentioning A's name. C agrees to procure the poison, and procures and delivers it to B for the purpose of its being used in the manner explained. A administers the poison; Z dies in consequence. Here, though A and C have not conspired together, yet C has been engaged in the conspiracy in pursuance of which Z has been murdered. C has therefore committed the offence defined in this section and is liable to the punishment for murder.

CRIMINAL CONSPIRACY – Section 120A to 120B

Criminal Conspiracy was incorporated in the Indian Penal Code, 1860, by Act 8 of 1913. Chapter VA of the Indian Penal Code, 1860, provides for the provision of Criminal Conspiracy.

Section 120A of the Indian Penal Code defines 'conspiracy' to mean that when two or more persons agree to do, or cause to be done an illegal act, or an act which is not illegal by illegal means, such an agreement is designated as "criminal conspiracy. No agreement except an agreement to commit an offence shall amount to a criminal conspiracy, unless some act besides the agreement is done by one or more parties to such agreement in furtherance thereof. Section 120-B of the I.P.C. prescribes punishment for criminal conspiracy. It is not necessary that each conspirator must know all the details of the scheme nor be a participant at every stage. It is necessary that they should agree for design or object of the conspiracy.

Conspiracy is conceived as having three elements:

- (1) Agreement
- (2) Between two or more persons by whom the agreement is effected; and

- (3) A criminal object, which may be either the ultimate aim of the agreement, or may constitute the means, or one of the means by which that aim is to be accomplished. It is immaterial whether this is found in the ultimate objects

SEDITION – SECTION 124A

The term 'Sedition' means "conduct or speech which results in mutiny against the authority of the state".

Although Thomas Macaulay, who drafted the Indian Penal Code, had included the law on sedition, it was not added in the code enacted in 1860. Legal experts believe this omission was accidental. In 1890, sedition was included as an offence under section 124A IPC through the Special Act XVII.

The provision was extensively used to curb political dissent during the Independence movement.

Section 124A: Sedition.

It states that whoever by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards, the Government established by law in India, shall be punished with imprisonment for life, to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

Explanation 1- The expression "disaffection" includes disloyalty and all feelings of enmity.

Explanation 2- Comments expressing disapprobation of the measures of the Government with a view to obtain their alteration by lawful means, without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

Explanation 3- Comments expressing disapprobation of the administrative or other action of the Government without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section

ILLUSTRATION: During A rally of Anti-Corruption Mr. A, puts up banners mocking the constitution and posting the same on his website. He has committed an offence of sedition.

RIOTING – Section 146

Whenever force or violence is used by an unlawful assembly or by any member thereof in prosecution of the common object of such assembly is guilty of the offence of rioting.

Following are the ingredients of an offence of rioting.

- (i) Use of Force or Violence: There must be use of force or violence by an unlawful assembly or any member thereof to constitute an offence of rioting. It is not necessary that the force or violence should be directed against any particular person or object.
- (ii) By Unlawful Assembly or Any Member: The force or violence must be used by an unlawful assembly or any member of it, so to constitute an offence of rioting all the ingredients of sec. 141 need to be fulfilled.
- (iii) In Prosecution of Common Object: Such force or violence should have been used in prosecution of the common object of such assembly.

COUNTERFEITING OF COINS – Section 232, 489A

A counterfeit coin has not been defined anywhere in the Indian Penal Code. However, according to Section 28 of the British Forgery and Counterfeiting Act, 1981; a counterfeit coin means a coin without genuineness, but resembling or is apparently intended to resemble so as to get passed for a genuine or current coin, which has been Gilt, Severed, Washed, Colored or cast over, or Altered in any manner for resembling any current coin of higher denomination.

A person is said to "counterfeit" who causes one thing to resemble another thing, intending by means of that resemblance to practise deception, or knowing it to be likely that deception will thereby be practised.

Explanations:

Explanation- It is not essential to counterfeiting that the imitation should be exact.

Explanation- When a person causes one thing to resemble another thing, and the resemblance is such that a person might be deceived thereby, it shall be presumed, until the contrary is proved, that the person so causing the one thing to resemble the other thing intended by means of that resemblance to practise

deception or knew it to be likely that deception would thereby be practised.

According to Section 232 of the Indian Penal Code, anybody in relation to the Indian coin-

- Counterfeits; or
- Participates in any part of the counterfeiting process;

Shall be punishable life imprisonment or for a term extending up to 10 years accompanied by fine.

Thus, following are the ingredients under this section:

1. Counterfeiting of Indian Coin;
2. The accused deliberately counterfeited the coin or participated in the counterfeiting process.

Mere possession of counterfeit notes does not mean that there was an intention of knowingly using the notes on the part of the accused and hence the charges under section 489B (using as genuine, forged or counterfeit notes) of the Indian Penal Code (IPC) does not apply to him.

According to section 489A of Indian penal code, whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any currency-note or bank-note, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

PUBLIC NUISANCE – Section 268

Nuisance means annoyance.

Nuisance is an act or omission which is an interference with, or disturbance of or annoyance to a person in the exercise or enjoyment of a right belonging to him as a member of the public, when it is a public nuisance, or his ownership or occupation of land, or of some easement, quasi-easement, or other right used or enjoyed in connection with land, when it is private

Section 268 of Indian Penal Code, 1860 deals with the offence public nuisance.

A person is guilty of a public nuisance who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury,

obstruction, danger or annoyance to persons who may have occasion to use any public right.

A common nuisance is not excused on the ground that it causes some convenience or advantage.

The distinction between private and public nuisance is a matter of fact and not law and can collapse in situations where the right being violated is a public right but the injury is caused to an individual and not the public at large. In many cases it essentially is a question of degree.

ILLUSTRATION: Mr. A obstructs the highway affecting houses adjacent to it. Mr. A has committed the offence of public nuisance.

ABETMENT OF SUICIDE – SECTION 306

The charge of abetment of suicide is widely used in the cases of dowry demand related suicides or suicides as a result of domestic violence or cruelty.

Section 306 of the Indian Penal Code defines abetment of suicide as “If any person commits suicide, whoever abets the commission of such suicide, shall be punishable with such imprisonment of either description of a term which may extend to 10 years, and shall also be liable to fine.”

In order to bring a successful conviction under this section it is important that its three essential ingredients stand to be fulfilled:

- (1) The deceased should have committed suicide
- (2) The accused under this section should have abetted or instigated him/her to commit such an act; and
- (3) Such the alleged involvement of the accused should be direct in nature.

BIGAMY – Section 494

Bigamy is the act of entering into a marriage with someone, while still being legally married to another. In other words, it is a condition of having two spouses at the same time; a man may have two wives or a woman may have two husbands. Either way when this happens, the second marriage is considered null and void and is therefore annulled. The person who knowingly enters into the second marriage, that is, the bigamous marriage is guilty of the crime of bigamy.

Section 494 of the Indian Penal Code, 1860, states that whoever, having a husband or wife living, marries in

any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Exception- This section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction, nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.

Exception is understandable in that if a person whose marriage with such husband or wife means the husband and wife of first marriage is declared void by a competent, this section is not applicable to such person. Second exception is, if a person contracts a marriage during life of a former husband or wife, who at the time of marriage is continually absent from such person for a period of seven years or not even heard of being alive, and provided person contracting subsequent marriage should not hide about fact relating to earlier marriage with the person he/she is marrying in subsequent marriage.

ADULTERY – Section 497

The word "adultery" has been derived from the Latin term "adulterium" and is defined as consensual sexual relationship between a married woman and an individual other than his/her spouse. Almost all religions throughout the world condemn it and treat it as an unforgivable offense. However, this may not be reflected in the legal jurisdictions of the countries but adultery is recognized as a solid ground for divorce in all penal laws. The Indian penal code also recognizes adultery as a crime and a punishable offence. This law comes under the criminal law of India and has been placed under chapter XX that deals with crimes related to marriage.

Section-497 of the Indian Contract Act states that "Whoever has sexual intercourse with a person who is

and whom he knows or has reason to believe to be the wife of another man, without the consent or connivance of that man, such sexual intercourse not amounting to the offence of rape, is guilty of the offence of adultery,

and shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both. In such case, the wife shall not be punishable as an abettor."

Decriminalisation of Adultery

CASE LAW: JOSEPH SHINE VS. UNION OF INDIA

Facts in brief: A writ petition was filed under Article 32 by Joseph Shine challenging the constitutionality of Section 497 of IPC read with Section 198 of Cr. P.C., being violative of Article 14, 15 and 21. The petitioner claimed the provision for adultery to be arbitrary and discriminatory on the basis of gender. The petitioner claimed that such a law demolishes the dignity of a woman.

Held: The Supreme Court struck down Section 497 of IPC which criminalised adultery holding that it is violative of Articles 14, 15 and 21 of the Constitution.

DEFAMATION – Section 499 to 502

There is a need to balance the public right to free speech & expression with the private right to reputation. Legislation about defamation is an attempt to do the same.

Defamation is a Civil as well as a criminal offence.

Under Criminal Law, Indian Penal Code, defines defamation as - "Whoever, by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter excepted, to defame that person."

EXPLANATIONS:

Explanation 1- It may amount to defamation to impute anything to a deceased person, if the imputation would harm the reputation of that person if living, and is intended to be hurtful to the feelings of his family or other near relatives.

Explanation 2- It may amount to defamation to make an imputation concerning a company or an association or collection of persons as such.

Explanation 3- An imputation in the form of an alternative or expressed ironically, may amount to defamation.

Explanation 4- No imputation is said to harm a person's reputation, unless that imputation directly or indirectly, in the estimation of others, lowers the moral

or intellectual character of that person, or lowers the character of that person in respect of his caste or of his calling, or lowers the credit of that person, or causes it to be believed that the body of that person is in a loathsome state, or in a state generally considered as disgraceful.

ILLUSTRATION: A draws a picture of Z running away with B's watch, intending it to be believed that Z stole B's watch. This is defamation, unless it falls within one of the exceptions.

ILLUSTRATION: C is asked who stole B's watch. C points to Z, intending to cause it to be believed that Z stole B's watch. This is defamation, unless it falls within one of the exceptions.

Under Criminal Law three essentials are to be proved to establish wrong of Defamation-

1. There should be existence / publication of an imputation made by a person.
2. Such imputation may be words spoken or written signs, or visible representation.
3. It should be made to injure or having knowledge to believe that it will injure reputation of a person.

EXCEPTIONS:

There are ten exceptions mentioned in Indian Penal Code under which a person can escape his liability from an action of Defamation:

First Exception- Imputation of truth which public good requires to be made or published

Second Exception- Public conduct of public servants

Third Exception- Conduct of any person touching any public question

Fourth Exception- Publication of reports of proceedings of courts

Fifth Exception- Merits of case decided in Court or conduct of witnesses and others concerned

Sixth Exception- Merits of public performance

Seventh Exception- Censure passed in good faith by person having lawful authority over another

Eighth Exception- Accusation preferred in good faith to authorised person

Ninth Exception- Imputation made in good faith by person for protection of his or other's interests

Tenth Exception- Caution intended for good of person to whom conveyed or for public good.

KINDS OF DEFAMATION

SLANDER- When a defamatory imputation is made on a temporary source of communication like verbally defaming someone;

LIBEL- When defamatory imputation is made on a permanent source of communication like publication in a newspaper or on electronic source

ATTEMPT – Section 511

In every crime, there is first, intention to commit, secondly, preparation to commit it, thirdly, attempt to commit it. If the third stage, that is, attempt is successful, then the crime is complete. If the attempt fails the crime is not complete, but law punishes the person attempting the act. Section 511 is a general provision dealing with attempts to commit offences not made punishable, by other specific sections. It makes punishable all attempts to commit offences punishable

with imprisonment and not only those punishable with death. An attempt is made punishable, because every attempt, although it falls short of success, must create alarm, which by itself is an injury, and the moral guilt of the offender is the same as if he had succeeded.

Section 511 states that whoever attempts to commit an offence punishable by this Code with 1 [imprisonment for life] or imprisonment, or to cause such an offence to be committed, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Code for the punishment of such attempt, be punished with 2 [imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment provided for that offence], or with such fine as is provided for the offence, or with both.

It is simple to say that an attempt to commit offence begins where preparation to commit it ends, but it is difficult to find out where one ends and the other begins. To solve this riddle various tests have been laid down by the courts. These are as follows:

- The Proximity test;
- The locus poenitentiae test;
- The impossibility test;
- The social danger test, and
- The equivocal test

ILLUSTRATION: A makes an attempt to steal some jewels by breaking open a box, and finds after so opening the box, that there is no jewel in it. He has done an act towards the commission of theft, and therefore is guilty under this section.

ILLUSTRATION: B makes an attempt to pick the pocket of Z by thrusting his hand into Z's pocket. B fails in the attempt in consequence of Z's having nothing in his pocket. A is guilty under this section.